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The House of Representatives of the States General
Attn: the Permanent Committee for Justice and Security
P.O. Box 20018
2500 EA The Hague
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Subject

Additional themes for consideration in the upcoming evaluation of the GDPR and the next amendment to the GDPR

Dear Mr. Weerwind, dear Ms. Van Huffelen, dear members of the Permanent Committee for Justice and Security,

At the end of last year, the draft bill for the Data Protection Consolidation Act (36264) was submitted for consideration to the House of Representatives. The deadline for contributions for a (first) written consultation has been set for February 9 of this year. The advice from the Authority for Personal Data (AP) regarding this draft bill dates back to November 11, 2020 (reference z2020-08972). The Explanatory Memorandum (hereinafter also: MvT) has responded predominantly positively to the advice given by the AP at that time.

The AP sees it as its task and duty to think structurally about how the protection of personal data can be improved and enforcement can be strengthened. The aforementioned advice is now more than two years old. In the two years following its dispatch, several suggestions have arisen and/or been proposed to the AP that could further strengthen the protection of personal data and enforcement. The

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AP acknowledges that the consolidation act is of a technical nature and therefore less suitable for complex adjustments. Nevertheless, the AP sees this as a good moment to bring several matters to your attention that could perhaps still be considered in the deliberation of this draft bill. However, the AP leaves it to you to assess whether these suggestions can still be included in this draft bill by means of an amendment or at another appropriate time in upcoming legislative adjustments. You will find those suggestions in this letter. The AP will also make a few remarks about two proposals that have (not yet) been incorporated into the draft bill. In summary, these remarks contain the following points.

1. Broaden the scope of the AP's powers regarding effective, proportionate, and deterrent enforcement by the AP. This by giving the AP the legal ability to enforce all breaches committed by competent

authorities against the Law Enforcement Data Protection Directive.

2. Grant the AP the ability to impose a compensation measure on the offender for the benefit of the victim. This is comparable to the current authority that the Public Prosecution Service has based on Article 36f of the Penal Code.
3. Provide companies with a legal avenue to the courts so that those experiencing unfair competition can take action against other companies that do not comply with the GDPR and thereby gain an undue advantage.
4. Legally establish a disclosure obligation for sanction decisions made by the AP.
5. Legally enable the AP to impose fines on (legal) persons who are not processors or (joint) controllers but are nonetheless co-responsible for the violation (think of complicity, instigation, aiding and abetting).
6. Legally enable the non-compliance with the obligation for a non-EU established controller or processor to appoint a representative to be punishable as, for example, an economic offense, so that offenders based outside the EU can be less likely to evade their punishment.
7. In the GDPR, enable citizens to be actively informed about the use of algorithms.
8. Extend the right to be forgotten in search engine results to include the deletion of search results outside Europe and grant the AP the authority to enforce this.
9. Regulate in the GDPR that the GDPR also applies to the personal data of deceased persons.
10. The GDPR regulates when the rights of data subjects may be limited in Article 41 of the GDPR. This article does not meet the Charter of Fundamental Rights of the EU (including the principle of proportionality) due to the use of vague terms and concepts. We suggest that the legislator reconsider the text of this article.
11. A few remarks on the Explanatory Memorandum accompanying the consolidation act.

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****1. Effective, proportionate, and deterrent enforcement and penalties****

The General Data Protection Regulation (GDPR) contains the general rules for the protection of personal data. The Directive on Data Protection in Criminal Justice (DPD) contains the rules applicable to the processing of personal data by 'competent authorities for the purpose of preventing, investigating, detecting, or prosecuting criminal offenses or the enforcement of penalties, including the protection against and prevention of threats to public safety.' The DPD therefore applies not only to processing carried out by, for example, police and judiciary but also to all other bodies/entities 'authorized under national law to exercise public authority and public powers for the purpose of preventing, investigating, detecting, and prosecuting criminal offenses or the enforcement of penalties, including the protection against and prevention of threats to public safety.'

The Dutch Data Protection Authority (AP) has been designated as the supervisory authority for the application of both the GDPR and the DPD. Regarding the enforcement of EU law, it generally applies that enforcement authorities must (be able to) enforce and penalize effectively, proportionately, and deterrently. This is well regulated in the (directly applicable) GDPR. Furthermore, the DPD includes a clear provision in Article 57: 'Member States shall establish the rules regarding the penalties applicable to infringements of this directive and take all necessary measures to ensure that they are implemented. The penalties established must be effective, proportionate, and deterrent.'

However, directives do not have direct effect and must be transposed into national legislation. In the Netherlands, the existing Police Data Act (Wpg) and the Judicial and Criminal Procedure Data Act (Wjsg) were 'utilized' for the transposition of the DPD. The intention at that time was that this 'utilization' would be temporary and that a completely new (and better) transposition law would be created. However, that project has been halted, as the AP has understood. The AP has previously pointed out that the use of both existing laws for the transposition of an entirely new directive has led to

necessary shortcomings. Although part of those shortcomings is, in a sense, materially remedied because provisions in directives can directly apply if a directive has not been properly transposed. This particularly applies when provisions in a directive are 'sufficiently clear and precise' and 'unconditional' and confer rights on citizens. Whether this is the case must, however, be assessed on a provision-by-provision basis, but this often leads to necessary legal uncertainty. For example, in this case concerning organizations that are not part of the police or judiciary but are tasked with – in short – the enforcement of provisions that can be penalized with administrative fines. In carrying out those tasks, the provisions in the DPD must be complied with. Facts that are penalized with an administrative fine qualify (then) as a 'criminal offense' – which is (here) an autonomous EU legal concept – while the Wpg and

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the Wjsg incorrectly suggests that the RGRh only applies to police and justice in the enforcement of facts that are classified as criminal offenses under Dutch law in the 'ordinary' criminal law. However, this overlooks that 'criminal offense' in the RGRh is an autonomous EU legal concept and thereby creates the necessary legal uncertainty for both citizens and other 'competent authorities' beyond police and justice.

Another consequence of the flawed transposition is that not all violations of provisions from the RGRh have been provided for the possibility of enforcement with penalties that are effective, proportionate, and deterrent. Only a few violations are punishable and often with significantly lower fines than under the GDPR. For example, it recently became apparent that the AP could impose fines for serious violations of the RGRh by the police for provisions that are preventive in nature, but not for violations of the fundamental right to the protection of personal data itself. This is difficult to explain and does not promote compliance with the RGRh in any case. The AP also pointed out this discrepancy between the (U)AVG and the Wpg and Wjsg regarding the number of punishable offenses and the level of fines in its advice of April 7, 2017.

The AP therefore advises you to correctly 'transpose' the RGRh into national legislation concerning all components and to ensure that violations committed by 'competent authorities' can always be enforced with penalties that are effective, proportionate, and deterrent, if necessary and warranted, similar to the situation under the (U)AVG. This is to ensure, as it is said, the useful effect of the RGRh, to increase legal certainty, and for the sake of uniformity and clarity of supervision and enforcement.

2. Compensation

Fundamental rights protect the rights and freedoms of citizens. Enforcement should primarily aim to end unlawful interferences. Furthermore, it is important that legal relationships are restored, that unlawfully obtained benefits are removed – after all, violating the fundamental rights of others should never be rewarding – and that there is (additionally) punishment where it is appropriate and warranted from a preventive and/or repressive perspective.

Enforcement actions by the AP should, ideally, lead to the cessation of violations of the fundamental right to the protection of personal data and often also to the cessation of violations of other fundamental rights.

1 Point 2 of the AP's advice of April 17, 2017, reference z2017-01571 regarding the legislative proposal for the implementation of Directive (EU) 2016/680.

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However, if these infringements have caused damage to citizens, the damage caused has not yet been compensated. Citizens must currently hold those responsible accountable themselves and must—if the damage is not voluntarily compensated—initiate proceedings in court themselves. Of course, the AP could, in such cases, agree to a lower fine on the condition that the damage is compensated, but this possibility is not being utilized at this time. Furthermore, this way, the compensation for the damage remains dependent on the voluntary consent of the party that caused the damage. It also does not provide victims with a title for recovery if payment stops at a later time.

Because compensating for damage is important in the context of legal restoration, the AP is considering making more frequent use of the aforementioned possibility.

Also, in 'ordinary' criminal law, the possibilities for achieving damage compensation have significantly improved in recent years. This is partly due to the opportunities created by the legislator in, for example, the Penal Code and the Code of Criminal Procedure. This promotes and facilitates legal restoration and prevents victims from having to initiate a civil procedure themselves to obtain compensation after the conclusion of a criminal case (which also prevents additional lawsuits).

The legislator could also provide additional support to victims of unlawful interference with the fundamental right to the protection of personal data in this regard, promoting and facilitating more and better legal restoration than is currently the case (and thus also preventing additional lawsuits) by including an article in the GDPR that—briefly stated—is of a similar nature and scope as Article 36f of the Penal Code (hereinafter also: Sr), the compensation measure. The Public Prosecution Service (OM) also has that possibility and uses it alongside or instead of a fine. Often, it also concerns damage caused by an infringement of citizens' fundamental rights, for example, the free enjoyment of property or the bodily integrity of a citizen.

Because (by now) various violations of the fundamental right to the protection of personal data are also punishable under 'ordinary' criminal law, this leads to the particular distinction that the OM can impose a compensation measure if a citizen files a report with the police, but the AP cannot do so if that citizen chooses not to unnecessarily burden the police, the OM, and the judiciary and 'restricts' themselves to filing a complaint with the AP. It seems to us that this distinction/effect is undesirable. Examples of behaviors that are punishable under both the GDPR and 'ordinary' criminal law include secretly filming (Article 441b Sr), intentionally and unlawfully taking non-public personal data (Article 138c Sr), and 'receiving' such data (Article 139g Sr), computer trespass (Article 138ab Sr), and violating a professional secrecy (with...

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regarding personal data) or (if the parliament decides so) doxing and the creation and distribution of sexfakes (both of which are already punishable under the GDPR).

3. Combating unfair competition: private and public

The AP (Dutch Data Protection Authority) experiences that a high level of protection of personal data is increasingly becoming a unique selling point for companies and welcomes this development.

Unfortunately, the AP also observes in practice that companies experience unfair competition because competitors do not comply with the GDPR and can thus gain an advantage. According to the letter of the GDPR, these adversely affected companies cannot complain to the AP due to the circumstance that they do not meet the complainant definition from the GDPR.² Of course, the AP can conduct an official investigation upon receiving such a 'complaint' and based on that, can start enforcement and/or the AP may declare enforcement requests admissible in relevant cases, and judges may be inclined (if necessary) to create some leeway by (somewhat) 'softening'/correcting the relativity requirement

through what has come to be known in the literature as the Widdershoven correction, but the outcome of such procedures is still uncertain (which is not good for legal certainty and does not promote compliance with the GDPR).

However, companies that suffer disadvantages in this way should also be able to initiate enforcement actions through the courts. The AP finds it important that entrepreneurs have a proper legal avenue in such situations. However, a judge recently decided³ that – in short – the standards of the GDPR do not extend to protection against what is perceived as unfair competition. There is a difference of opinion regarding the correctness of this ruling.⁴ Therefore, the AP requests the legislator to explicitly address this issue. If the legislator believes that this route to the civil court should also be open in such cases, then the relevant legislation can either be tightened/clarified now or this intention can be announced now should it turn out that the court's approach stands up to the highest instance.

In case C-319/205, this question was not answered because the question of the standing of a competitor was not at issue in the main proceedings.

2 The AP is currently not processing such a complaint because these parties (competitors) do not have the right to complain. Article 77 GDPR only grants a right to complain to data subjects, and competitors do not have access based on Article 80 GDPR (representation of data subjects).

3 Preliminary ruling, District Court of Zeeland-West-Brabant, February 3, 2021, ECLI:NL:RBZWB:2021:446.

4 T.F. Walree & P.T.J. Wolters, 'The right to compensation of a competitor in the event of a violation of the GDPR', SEW 2020/1 and JBP 2021/33, notably J.S. Faber & E.L.V. 't Hart.

5 Court of Justice of the European Union, April 28, 2022, ECLI:EU:C:2022:322.

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4. Obligation to Disclose for the AP

In its advice on the GDPR, the AP advocated for an obligation to disclose sanctions in the GDPR. Other supervisory authorities such as the ACM (§ 4 Establishment Act of the Authority for Consumers and Markets), AFM, and DNB (for example, Article 1:97 of the Financial Supervision Act et seq.) have specific disclosure obligations for sanctions. In the explanatory memorandum on the GDPR, the minister indicated that, given the policy-neutral nature of the GDPR at that time, it was not obvious to include this in the GDPR, and it was also reasonable to reconsider this topic once there was clarity about the progress of the legislative proposal for the Open Government Act (hereinafter: Woo). That clarity is now present. The Woo came into effect on May 1, 2022. The consideration of the desirability of amending the GDPR in this regard is therefore also timely. This is why the AP has reiterated its request to include an obligation to disclose sanctions for the AP in the law.

5. Commissioning, Instigation, and Complicity

Violations of the GDPR often involve unlawful interference with the fundamental rights of citizens. Not only with the fundamental right to the protection of personal data but often also with the fundamental right to respect for private life. Furthermore, there are also regular violations of other fundamental rights protected by the Charter of Fundamental Rights of the EU (CFR), such as the non-discrimination provisions. In this sense, data protection law does not fundamentally differ (much) from (the core of) so-called classical criminal law. Violent crimes, crimes against life, and sexual offenses are indeed infringements of the fundamental rights to bodily integrity and/or private life of the victims, while property crimes generally infringe upon the free enjoyment of property, discrimination violates the non-discrimination provisions, etc.

In cases of unlawful interference with fundamental rights that are criminalized in 'ordinary' criminal law, enforcement action can generally also be taken against all so-called participants in those criminal acts:

perpetrators, instigators, accomplices, and (if the act is committed by a legal entity) clients and de facto managers, where applicable and necessary. This means that if there is (with exceptions) at least (conditional) intent among those participants. Complicity is only not punishable if the (main) perpetrators do not have intent.

Unlawful interferences with the fundamental right to the protection of personal data (whether or not accompanied by unlawful interferences with other fundamental rights such as respect for private life or non-discrimination provisions) are now always punishable under the GDPR, and sometimes these violations are also committed intentionally. In several cases, this is also punishable under 'ordinary' criminal law.

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Violations of the GDPR and the RGRh are (now) also 'criminal offences', punishable acts. When violations are punishable under both 'ordinary' criminal law and the GDPR, it is only meaningful to conduct investigation and prosecution through 'ordinary' criminal law when the facts are of such seriousness that (also) a custodial sentence or a measure depriving liberty would be appropriate, or when investigative means need to be employed that are not provided for by the GDPR, the UAVG, the Awb, etc. If that is not the case, enforcement can be 'sufficiently' carried out through the GDPR, etc. This is not only more citizen-friendly but also less costly.

However, a particular effect of enforcing solely through the GDPR, etc. is that enforcement cannot be taken against all participants. Not even if all facts were committed intentionally.

Enforcement and punishment can be directed against both private law and public law legal entities, as well as against the clients or the actual leaders within those legal entities. This also applies to all accomplices, who are most likely classified as 'joint controllers' under the GDPR and the RHRh. However, when it comes to instigation, incitement, or complicity, problems/gaps arise in enforcement, even if all participants act intentionally. The AP finds this (now) very undesirable. On the one hand, it can depend on 'chance' – that is, on the 'entry point' that a victim chooses; the 'ordinary' criminal law or the GDPR/RGRh – whether enforcement can also be taken against all participants in cases of intent and (even) in serious and extensive violations. On the other hand, the AP regularly comes to suspect that there are serious and intentional forms of instigation, incitement, and/or complicity concerning serious breaches of the GDPR. Regarding accomplices, there is also the suspicion that these participants have intentionally assisted or intentionally provided opportunity, means, or information to commit the violation. For example, concerning products that are known to be used illegally in public spaces, yet are still promoted and sold for use in public spaces.

Since this is currently (still) not punishable, the AP will not mention investigations or situations in which this is relevant according to the AP. Nor will the AP name products that – in short – cannot be used in public spaces without causing a serious infringement of citizens' fundamental rights.

However, an important observation is that, in short, enforcement and punishment can indeed be directed against instigators and inciters of even relatively minor offenses that also concern violations of fundamental rights. Enforcement and punishment can also be directed against accomplices to such offenses. But that form of...

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Enforcement cannot occur when these participants exhibit similar behavior regarding even serious

violations of the GDPR – which then concern serious violations of fundamental rights – not even if it involves particularly sensitive data, nor even if it is also/indeed committed intentionally. This is (by now) difficult to understand. The AP seriously advises the legislator to consider eliminating these differences in enforcement possibilities by making it possible for the AP to also take enforcement action against these offenders, instigators, and accomplices, as soon as there is intent involved. This can be done quite simply by declaring the relevant articles from the Penal Code applicable to violations of the GDPR/RGRh through the UAVG.

6. Legal protection and enforcement against companies not established in the EU

Article 3 of the GDPR states that the GDPR also applies "to the processing of personal data of data subjects who are in the Union, by a controller or processor not established in the Union, when the processing is related to: a) the offering of goods or services to these data subjects in the Union, regardless of whether payment is required from the data subjects; or b) the monitoring of their behavior, insofar as this behavior takes place in the Union." The exceptions to this are not relevant for the point that the AP wants to make here.

That the GDPR also applies in such cases is logical, as that "offering" or "monitoring" indeed takes place in the Union. However, in the case where the controller or processor has no establishment in the Union, it is particularly important that they are also accountable within the Union; for, among others, data subjects and for the AP. This is also provided for in the GDPR. The GDPR states that the controller or processor must designate a representative in the EU for such cases. Exceptions to this can be omitted here – for the point to be made. The GDPR further considers this – insofar as relevant here: "The representative shall act on behalf of the controller or the processor and may be approached by any supervisory authority. The representative must be expressly designated by a written mandate from the controller or the processor to act on their behalf regarding their obligations under this regulation." Enforcement thus seems to be guaranteed as the GDPR also considers: "In the event of non-compliance by the controller or the processor, the designated representative shall be subject to enforcement procedures." This can and will increase legal certainty for citizens who wish to accept an offer from a provider not established in the EU.

Many companies, by the way, choose to open an establishment in the EU as soon as they become active within the EU or target citizens within the EU (from a non-EU country). However, various companies also choose not to establish themselves in the EU even then, but still comply with the obligation to designate a representative.

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Unfortunately, it still often occurs that companies do not comply with this so-called designation obligation under the GDPR. This makes it difficult – and often impossible – for citizens to hold those providers accountable and/or to exercise their rights based on the GDPR.

The Dutch Data Protection Authority (AP) can, of course, take enforcement action regarding both violations of the GDPR in general and regarding non-compliance with the designation obligation. However, a common bottleneck is that neither the (necessary) precise business details nor the responsible directors can be traced. The country from which the business operates can often be determined with some certainty. It is not excluded that there is often intent involved in remaining anonymous. This way, it is relatively easy to evade enforcement, with the serious consequence that there is no longer any remedy available regarding violations of fundamental rights. In fact, these companies thereby make themselves immune to both the exercise of rights by citizens and enforcement actions by the AP. Meanwhile, it is often not immediately clear to those citizens that these companies operate from outside the EU and have not complied with the obligations that this entails. In practice, it often concerns cases with many victims, who themselves cannot undertake any civil action,

for example. This is while it is unreasonable to expect citizens in the current time to verify whether the designation obligation has been fulfilled.

The Civil Code (BW) and the Trade Register Act (Hrw), for example, impose various registration obligations on companies that – in short – participate in economic transactions. The purpose of this is, among other things, to make (the management of) those companies traceable and accountable, thereby promoting legal certainty in economic transactions. The designation obligation in Article 27 GDPR is comparable to this.

Non-compliance with various registration obligations from the BW and the Hrw is punishable under the Economic Offences Act. Violations are always threatened with (also) a custodial sentence, even if the non-compliance with a duty is only qualified as a 'violation'. Non-compliance with the designation obligation in the GDPR is 'only' threatened with a monetary fine that, precisely because that obligation is not complied with, cannot actually be enforced.

An adequate response from the legislator could also be to – analogous to the non-compliance with the already existing registration obligations – include the non-compliance with the designation obligation in the GDPR as an infringement in the Economic Offences Act and qualify it there – given the very serious consequences for citizens and the undermining effect on the GDPR – as a crime if committed intentionally. The intentional non-compliance with Article 27 GDPR can, of course, also be included as an independent crime in

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the Penal Code, as the legislator also intends regarding, for example, doxing.

By qualifying it as a criminal offense – in one of the two laws – the legislator not only expresses the seriousness and reprehensibility of this undermining of the GDPR but also likely makes it possible, in certain cases, to invoke existing treaties for international legal assistance. Especially when non-compliance with the designation obligation leads to the inability to enforce very serious violations of citizens' fundamental rights, this can be a welcome addition to enforcement options. Additionally, the AP advocates that international treaties be supplemented with the possibility of cross-border collection of administrative fines.

7. Transparency regarding the use of algorithms

Citizens have the right under the GDPR 'not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning them or similarly significantly affects them'. This prohibition does not apply if these forms of automated processing are explicitly 'permitted by a provision of Union law or national law applicable to the data controller and which also provides for appropriate measures to safeguard the rights and freedoms and legitimate interests of the data subject'.

The GDPR includes a number of rights for data subjects concerning transparency and information. And it must always be clear – even if there is a so-called 'human-in-the-loop' – which processes and what logic and/or criteria in algorithms and/or AI have led to, for example, (additional) checks or (thereafter) to a rejection or other negative decision. A 'human-in-the-loop' must also be able to answer these questions and reasonably guarantee that, for example, an algorithm and/or AI (whether or not self-learning) has not unlawfully discriminated. Being unable to answer such questions makes scrutiny and effective contestation – whether or not in court – of such processes and decisions practically illusory and will mean that a legality assessment will not easily withstand scrutiny for that reason alone.

The AP will reflect more generally at a later stage on how data controllers should and are fulfilling these obligations, especially in relation to processes that use algorithms.

But at this moment, it is urgent that government institutions actively inform citizens about processes in which algorithms are used to make choices when selecting citizens for, for example, (additional) checks. And if an (additional)

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control leads to a decision that is detrimental to citizens, then not only must that decision itself be well-motivated, but it must also be clear whether or not selection has taken place and, if so, how and on the basis of what logic/criteria. Because, if that is indeed the case, it is of great importance that those citizens also become aware of the underlying criteria and logic that led to that (additional) control. The fact that selection has been made using an algorithm/AI, and the selection criteria/logic used remain almost always unknown, and the concrete decision that follows such a control is also almost always silent on this matter.

Government institutions must actively make themselves accountable regarding these – in short – valuation and selection choices. And all bodies that are authorized to assess the legality of the specific (detrimental) decision must not only be able to assess the content of that specific decision but – equally importantly – must also be able to ascertain the legality of both the automated processing – particularly its non-discriminatory nature – and the individual control. But that must be known.

Because only if that information is known can those involved actively defend themselves against it and, if desired, have it assessed by the AP (Dutch Data Protection Authority) and/or a judge (who can only do so ex officio in that case), also regarding the question of whether selection has been made in a discriminatory manner or not.

The factual unawareness of citizens and judges regarding the selection criteria that led to (additional) control – and subsequently to a detrimental decision – has previously been referred to by the AP as ‘a gap in legal protection’. In that case, citizens cannot (have) that selection assessed, making legal protection regarding that selection effectively illusory. While even (merely) suspicions of discriminatory use of personal data in a selection in objections and appeals must already be able to be refuted, as this affects the legality of all (investigative) actions and/or decisions based on such a selection.

Active transparency regarding this issue can simply be promoted by including a small addition to the General Administrative Law Act (Awb) in this Consolidation Act. This article then stipulates the obligation to – if applicable – report that an automated form of processing of personal data of those involved has been used in the preparation or in the lead-up and/or at any time prior to the establishment of that decision, with a reference to a source of the underlying criteria and logic that led to that (additional) control.

8. The right to be forgotten outside the EU

Based on the GHV (General Data Protection Regulation) and the AVG (General Data Protection Regulation), citizens – in short – have the possibility to request operators of search engines to remove search results, the so-called

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right to be forgotten. The operator must always weigh, on the one hand, the fundamental rights to respect for private life and to the protection of personal data, and on the other hand, the fundamental right to freedom of expression and information. If such a request is not honored, citizens can file a

complaint with the AP or take legal action. For a long time, it was unclear whether an operator—if a request or complaint had to be honored—needed to remove only (summarily) the search results within the EU or also globally all search results. The Court of Justice of the EU (CJEU) has since clarified this: if such a removal request must be honored, it only needs to be honored concerning search queries originating from EU countries, such as on all European extensions (.nl, etc.). The reason for this is—briefly put—that not all countries outside the EU recognize this right to be forgotten and that the outcome of a balancing of different (fundamental) rights can vary by country, and the GDPR does not provide a framework for such a balancing. Regarding countries outside the EU, that balancing can therefore differ from country to country. As a result, the effect of honored requests and enforcement is only noticeable within the EU.

Thus, the practical effect of the GDPR on this point deviates from Article 2, which states that companies established outside the EU are also bound by the GDPR in cases where they offer services to citizens or monitor the behavior of citizens within the EU. This gives the GDPR a certain extraterritorial effect for those activities.

The consequence of this is that EU citizens who wish to have their personal data removed concerning the visibility of search results outside the EU have less legal protection than within the EU. While that information often originates from sites that make that information public within the EU. And that information—which has been lawfully made public within the EU by being posted on the internet and is only visible outside the EU for that reason—has not been transferred outside the EU to a third country based on, for example, an adequacy decision or another form of 'transfer' that has been accompanied by various due diligence requirements. This leads to a gap in the legal protection of EU citizens. However, the CJEU also explicitly considered in this ruling, which provided clarity on the territorial effect of the GDPR, the following: "Finally, it should be emphasized that Union law, in its current state, does not provide for the obligation to remove links for all versions of the search engine in question when a request for removal is granted, but it does not prohibit it either. Consequently, a supervisory authority or a judicial body of a Member State is still competent to weigh, in light of national standards for the protection of fundamental rights, the right of the person concerned to respect for his private life and to the protection of his personal data on the one hand, and the freedom of information on the other hand, and to do so after this."

6 CJEU EU September 24, 2019, C-507/17 (Google/CNIL), CLI:EU:C:2019:772.

7 CJEU EU September 24, 2019, C-507/17 (Google/CNIL), CLI:EU:C:2019:772.

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consideration to order the operator of the relevant search engine, if applicable, to remove the links for all versions of that search engine.' (The italics and underlining by the AP)

Based on this emphasis from the CJEU, the findings of Professor H. Kranenborg, and the desirability of adequately protecting EU citizens in this regard, the AP requests the legislator to explicitly empower it in the GDPR regarding this form of legal protection and enforcement.

Finally, the AP makes a few remarks concerning the suggestions that have already been made but have (not) yet been adopted.

9. Data of deceased persons

The GDPR states: 'This regulation does not apply to the personal data of deceased persons. Member States may establish rules regarding the processing of personal data of deceased persons.' This is therefore a power and not an obligation.

The Dutch legislator has so far chosen not to make use of this possibility to allow the GDPR to remain

applicable to the personal data of an individual for several years after their death.

The consequence of this is that at the moment of death, the protective effect of the GDPR immediately ceases concerning all personal data of the deceased. If third parties unlawfully use the personal data of a deceased person, recourse will have to be made to, for example, tort law. This occasionally leads to discussions about the applicable protective law. For instance, when taking photos or videos at traffic accidents. Regarding photos and videos of living victims, one can invoke the protective effect of the GDPR if those photos and/or videos are used for purposes other than solely for domestic use or, for example, journalistic purposes. However, surviving relatives can no longer invoke this once the individual has passed away. This occasionally leads to distressing situations, which you will be familiar with. Normative discussions regarding, among other things, the applicable protective law can easily be prevented and resolved by including in the GDPR that it remains applicable to the processing of personal data of deceased persons, for example, for up to five years after death.

8 H. Kranenborg, 'Google and the extraterritorial effects of the GDPR', NJB 2020/1384

Date

January 26, 2023

Our reference

2023-01-AWO-ABR

15/16

10. Limitation of the rights of data subjects

Article 23 of the GDPR provides national legislators with the possibility to limit the rights of data subjects under certain circumstances – briefly summarized. In the UAVG, this possibility has been utilized in Article 41, but the manner in which this has been done does not align with the requirements set forth by Article 23 of the GDPR. As it is currently stipulated, it is up to the relevant administrative body to make the assessments in a specific case that the legislator should have made in general beforehand. However, if limitations are imposed on the rights of data subjects, that legislation must always comply with the requirements set by the GHV. This means that such legislation must also meet, among other things, the strict standards of the principle of proportionality.

The AP has already warned several times about this incorrect, overly general use of the possibilities of Article 23 of the GDPR. The CJEU has also commented on the (im)possibilities of Article 23 of the GDPR and on how it can be implemented. This confirms, in the opinion of the AP, the aforementioned position of the AP. The CJEU has considered – in *Quadratur 9* – that Article 23 allows member states to limit the scope of the obligations and rights mentioned therein through legislative measures, 'provided that such limitation does not affect the essence of the fundamental rights and freedoms and is a necessary and proportionate measure in a democratic society to safeguard' the pursued objective and that 'any legislative measure established on that basis must in particular comply with the specific requirements set out in Article 23, paragraph 2, of the GDPR.' The CJEU further stated 'that the power granted to member states by Article 23, paragraph 1, of the GDPR can only be exercised in accordance with the requirement of proportionality, which requires that exceptions to the protection of personal data and limitations thereof remain within the limits of what is strictly necessary.' This means, among other things, that such legislation must be sufficiently precise and accurate. Article 41 of the UAVG does not meet those requirements.

In the explanatory memorandum, the minister now considers – in short – that, after weighing everything, it is (still) undesirable to repeal Article 41 UAVG because the consequences of repeal are currently insufficiently foreseeable. That may be the case, but it does not mean that data controllers can invoke that article if they wish to limit the rights of a data subject. This creates significant legal uncertainty for both data controllers and citizens, as the AP will not honor a data controller's invocation of Article 41 UAVG in the event of complaints, expecting that judges will follow suit. In other words: repealing the practically unusable Article 41 UAVG actually greatly promotes legal certainty regarding this issue.

9 CJEU EU October 6, 2020, joined cases C 511/18, C 512/18, C 520/18, ECLI:EU:C:2020:791.

Date

January 26, 2023

Our reference

2023-01-AWO-ABR

16/16

11. Some remarks on the Explanatory Memorandum regarding biometrics and consent

After the AP advised on the earlier version of the amendment to the UAVG, a passage was added in the explanatory memorandum regarding Article 29 of the UAVG with examples of companies and areas that meet the requirement of a compelling general interest for processing biometric data. The AP's concern regarding this addition is that by naming these examples, the impression is created that biometric data can be processed generically and unconditionally at these companies and locations. The AP emphasizes that even at these companies and in these locations, a concrete assessment based on the dual necessity test must be made.

Furthermore, after the AP had issued its advice, an additional passage was added in the explanatory memorandum about the possibility that an employee freely gives consent to their employer for processing biometric data if there are alternative access options and the employee does not feel pressured. The explanatory memorandum thus further elaborates on the autonomous European legal concept of 'explicit consent' that must be freely given. This concept is interpreted in the same way across Europe. There is already a clear normative framework for this concept, which is supported at the European level. Therefore, in the opinion of the AP, this passage in the explanatory memorandum is redundant (and without legal relevance) and raises concerns that it may cause unnecessary confusion about the circumstances under which (explicit) consent is freely given in an employer-employee relationship.

Yours sincerely,

Data Protection Authority,

Aleid Wolfsen

Chairman